

Court No. - 21

Case :- WRIT - C No. - 44888 of 2023

Petitioner :- Sarvjeet Tiwari

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Sanjai Kumar Pandey

Counsel for Respondent :- C.S.C., Sushil Kumar Pandey

Hon'ble Manoj Kumar Gupta, Acting Chief Justice

Hon'ble Kshitij Shailendra, J.

1. There is a request for adjournment on behalf of counsel for the petitioner.
2. Put up as fresh on 11.01.2024.

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, A.C.J.)

Order Date :- 4.1.2024

Brijesh Maurya

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1. Shri S.K. Pandey, learned counsel for the respondent-Electricity Department seeks time to ascertain whether the procedure provided under Clause 6.8 of the U.P. Electricity Supply Code, 2005 has been followed or not and, in case not followed, the steps which the respondents propose to take to remedy the situation.

2. List as a fresh case on 23.01.2024.

3. In the meantime, no coercive action shall be taken on the basis of the impugned recovery citation.

Order Date :- 11.1.2024

Jyotsana

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, A.C.J.)

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1. Shri Sushil Kumar Pandey, learned counsel for the respondent-Electricity Department states that the impugned recovery has been withdrawn and that fresh order will be passed after inquiry and opportunity of hearing.
2. As such, cause does not survive.
3. The petition stands **disposed of**, accordingly.
4. The communication dated 13.01.2024 sent by Executive Engineer to the District Magistrate in this behalf is taken on record.

Order Date :- 23.1.2024

Jyotsana

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, A.C.J.)